

Federal Constitution

NOTES

Art. 10

See Art. 149(1).

Clause (1)

The words “Subject to Clauses (2), (3) and (4)” substituted for the words “Subject to Clauses (2) and (3)” by Act A30, section 2, in force from 10-03-1971.

Clause (2)

- a. The words “or any part thereof” which appear in paragraphs *(a)*, *(b)* and *(c)* were inserted by Act 26/1963, subsection 60(3), in force from 16-09-1963.
- b. *See* Art. 4(2)(b).

Clause (3)

Added by Act 26/1963, subsection 60(4), in force from 16-09-1963, which also amended Clause (1) by substituting the words “Clauses (2) and (3)” for the words “Clause (2)”.

Clause (4)

Added by Act A30, section 2, in force from 10-03-1971.

(3) Every religious group has the right—

- (a) to manage its own religious affairs;
- (b) to establish and maintain institutions for religious or charitable purposes; and
- (c) to acquire and own property and hold and administer it in accordance with law.

(4) State law and in respect of the Federal Territories of Kuala Lumpur, Labuan and Putrajaya, federal law may control or restrict the propagation of any religious doctrine or belief among persons professing the religion of Islam.

(5) This Article does not authorize any act contrary to any general law relating to public order, public health or morality.

Rights in respect of education

12. (1) Without prejudice to the generality of Article 8, there shall be no discrimination against any citizen on the grounds only of religion, race, descent or place of birth—

- (a) in the administration of any educational institution maintained by a public authority, and, in particular, the admission of pupils or students or the payment of fees; or
- (b) in providing out of the funds of a public authority financial aid for the maintenance or education of pupils or students in any educational institution (whether or not maintained by a public authority and whether within or outside the Federation).

(2) Every religious group has the right to establish and maintain institutions for the education of children in its own religion, and there shall be no discrimination on the ground only of religion in any law relating to such institutions or in the administration of any such law; but it shall be lawful for the Federation or a State to establish or maintain or assist in establishing or maintaining Islamic institutions or provide or assist in providing instruction in the religion of Islam and incur such expenditure as may be necessary for the purpose.

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Art. 11

Clause (4)

- a. The words “and in respect of the Federal Territory, federal law” were inserted after the words “State law” by Act A206, section 11, in force from 01-02-1974.
- b. The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.
- c. Subsequently the words “Territories of Kuala Lumpur and Labuan” substituted for the word “Territory” by Act A585, section 20, in force from 16-04-1984.
- d. The words “Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Kuala Lumpur and Labuan” by Act A1095, section 13, in force from 01-02-2001.

Art. 12

Clause (2)

- a. The present Clause was inserted by Act A354, section 6, in force from 27-08-1976, and replaced the earlier Clause which read as follows:

“(2) Every religious group has the right to establish and maintain institutions for the education of children and provide therein instruction in its own religion, and there shall be no discrimination on the ground only of religion in any law relating to such institutions or in the administration of any such law; but federal law or State law may provide for special financial aid for the establishment or maintenance of Muslim institutions or the instruction in the Muslim religion of persons professing that religion.”.
- b. The words “or State law” which appear after the words “federal law” in the above Clause were inserted by Act 25/1963, subsection 2(1), in force from 31-08-1957.

(3) No person shall be required to receive instruction in or to take part in any ceremony or act of worship of a religion other than his own.

(4) For the purposes of Clause (3) the religion of a person under the age of eighteen years shall be decided by his parent or guardian.

Rights to property

13. (1) No person shall be deprived of property save in accordance with law.

(2) No law shall provide for the compulsory acquisition or use of property without adequate compensation.

PART III

CITIZENSHIP

Chapter 1—Acquisition of Citizenship

Citizenship by operation of law

14. (1) Subject to the provisions of this Part, the following persons are citizens by operation of law, that is to say:

(a) every person born before Malaysia Day who is a citizen of the Federation by virtue of the provisions contained in Part I of the Second Schedule; and

(b) every person born on or after Malaysia Day, and having any of the qualifications specified in Part II of the Second Schedule.

(c) *(Repealed)*.

(2) *(Repealed)*.

(3) *(Repealed)*.

Citizenship by registration (wives and children of citizens)

15. (1) Subject to Article 18, any married woman whose husband

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Art. 14

1. The present Article was inserted by Act 26/1963, section 23, in force from 16-09-1963, but Clauses (1)(c), (2) and (3), which are reproduced below, were repealed by Act 59/1966, section 2, in force from 09-08-1965:

“(1)(c) every citizen of Singapore.

(2) Subject to the provisions of this Part, provision with respect to citizenship of Singapore may be made by the Constitution of that State, and may be amended by laws passed by the Legislature of that State and approved by Act of Parliament.

(3) Citizenship of Singapore shall not be severable from citizenship of the Federation, but a Singapore citizen by the loss of either shall lose the other also (subject to the provision made by this Part for the enrolment of a Singapore citizen as a citizen who is not a Singapore citizen).”.

2. The earlier Article, as it stood at the date of repeal, read as follows:

“14. (1) Subject to the following provisions of this Article, the following persons are citizens by operation of law, that is to say:

- (a) every person who, immediately before Merdeka Day, was citizen of the Federation by virtue of any of the provisions of the Federation of Malaya Agreement 1948, whether by operation of law or otherwise;
- (b) every person born within the Federation on or after Merdeka Day;
- (c) every person born outside the Federation on or after Merdeka Day whose father is a citizen at the time of the birth and either was born within the Federation or is at the time of the birth in service under the Government of the Federation or of a State;
- (d) every person born outside the Federation on or after Merdeka Day whose father is a citizen at the time of the birth, if the birth is registered at a Malayan Consulate or, in the case of any such person born within any prescribed territory, with the Federal Government, within one year of its occurrence, or within such longer period as the Federal Government may in any particular case allow.

For the purposes of paragraph (d) of this Clause “prescribed territory” means Singapore, Sarawak, Brunei or North Borneo, or any such other territory as the Yang di-Pertuan Agong may by order prescribe for those purposes.

(2) A person is not a citizen by virtue of paragraph (b) of Clause (1) if, at the time of his birth—

- (a) his father, not being a citizen of the Federation, possessed such immunity from suit and legal process as is accorded to an envoy of a sovereign power accredited to the Yang di-Pertuan Agong; or
- (b) in the case of a birth occurring in a place under occupation by the enemy, his father was an enemy alien; or
- (c) neither of his parents was a citizen of the Federation and neither of them was a permanent resident therein:

Provided that paragraph (c) of this Clause does not apply—

- (i) to any person born within the Federation before the date on which section 2 of the Constitution (Amendment) Act 1962 come into force;
- (ii) to any person if, as a result of the application of that paragraph, he would not be a citizen of any country.

(3) For the purposes of this Article a person born on board a registered ship or aircraft shall be deemed to have been born in the place in which the ship or aircraft was registered, and a person born on board an unregistered ship or aircraft of the Government of any country shall be deemed to have been born in that country.

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Art. 14—(cont.)

(4) For the purposes of paragraph (c) of Clause (2) a person shall be treated as having been at any time a permanent resident in the Federation if, but only if, he was then resident in the Federation and either—

- (a) he then had permission, granted without limit of time under any federal law, to reside there; or
- (b) it is certified by the Federal Government that he is to be treated for the purposes of the said paragraph (c) as a permanent resident in the Federation.

(5) A certificate of the Federal Government that a person is or was excluded from the application of paragraph (c) of Clause (2) by paragraph (ii) of the proviso to that Clause shall be conclusive evidence of the matter certified.”.

Art. 15

1. The present Article was inserted by Act 26/1963, section 25, in force from 16-09-1963. Act 59/1966, section 2, in force from 09-08-1965, amended it—

- a. by repealing Clause (6) which read as follows:

“(6) In Clause (1) the words “outside Singapore” shall not have effect in the case of a woman whose husband is a citizen by naturalization under Clause (2) of Article 19.”;

- b. by deleting the references to Singapore and Singapore citizens in Clauses (1) to (5).

Clause (1)

See Art. 24(4), 26(2), 28(1)(b) & 28A(3).

Clause (3)

See Second Schedule, Part III, section 18.

2. The original Article as it stood on Merdeka Day read as follows:

“15. (1) Subject to Article 18, any woman who is married to a citizen is entitled, upon making application to the registration authority, to be registered as a citizen.

(2) Subject to Article 18, any person under the age of twenty-one years whose father is a citizen or, if deceased, was a citizen at the time of his death, is entitled, upon application made to the registration authority by his parent or guardian, to be registered as a citizen if that authority is satisfied that he is ordinarily resident in the Federation and is of good character.

(3) The reference in this Article to a woman who is married is a reference to a woman whose marriage has been registered in accordance with any written law in force in the Federation, including any such law in force before Merdeka Day.”.

3. Clauses (1) and (2) amended by Act 10/1960, section 2, in force from 01-12-1960, by substituting the words “Federal Government” for the words “registration authority” and the words “the Federal Government” for the words “that authority”. These two Clauses as substituted by Act 14/1962, section 3, in force from 01-10-1962, read as follows:

“15. (1) Subject to Article 18, any woman who is married to a citizen is entitled, upon making application to the Federal Government, to be registered as a citizen if she satisfies the Federal Government—

- (a) that she has resided continuously in the Federation for a period of not less than two years immediately preceding the date of the application;
- (b) that she intends to reside permanently therein; and
- (c) that she is of good character.

(2) Subject to Article 18, the Federal Government may cause any person under the age of twenty-one years, being the child of any citizen, to be registered as a citizen upon application made to the Federal Government by his parent or guardian.”.

is a citizen is entitled, upon making application to the Federal Government, to be registered as a citizen if the marriage was subsisting and the husband a citizen at the beginning of October 1962, or if she satisfies the Federal Government—

(a) that she has resided in the Federation throughout the two years preceding the date of the application and intends to do so permanently; and

(b) that she is of good character.

(2) Subject to Article 18, the Federal Government may cause any person under the age of twenty-one years of whose parents one at least is (or was at death) a citizen to be registered as a citizen upon application made to the Federal Government by his parent or guardian.

(3) Subject to Article 18, a person under the age of twenty-one years who was born before the beginning of October 1962, and whose father is (or was at his death) a citizen and was also a citizen at the beginning of that month (if then alive), is entitled upon application made to the Federal Government by his parent or guardian, to be registered as a citizen if the Federal Government is satisfied that he is ordinarily resident in the Federation and is of good character.

(4) For the purposes of Clause (1) residence before Malaysia Day in the territories comprised in the States of Sabah and Sarawak shall be treated as residence in the Federation.

(5) The reference in Clause (1) to a married woman is a reference to a woman whose marriage has been registered in accordance with any written law in force in the Federation, including any such law in force before Merdeka Day, or with any written law in force before Malaysia Day in the territories comprised in the States of Sabah and Sarawak:

Provided that this Clause shall not apply where the woman applies to be registered as a citizen before the beginning of September 1965, or such later date as may be fixed by order of the Yang di-Pertuan Agong, and is at the date of the application ordinarily resident in the States of Sabah and Sarawak.

(6) (*Repealed*).

Special power to register children

15A. Subject to Article 18, the Federal Government may, in such special circumstances as it thinks fit, cause any person under the age of twenty-one years to be registered as a citizen.

Citizenship by registration (persons born in the Federation before Merdeka Day)

16. Subject to Article 18, any person of or over the age of eighteen years who was born in the Federation before Merdeka Day is entitled, upon making application to the Federal Government, to be registered as a citizen if he satisfies the Federal Government—

- (a) that he has resided in the Federation during the seven years immediately preceding the date of the application, for periods amounting in the aggregate to not less than five years;
- (b) that he intends to do so permanently;
- (c) that he is of good character; and
- (d) that he has an elementary knowledge of the Malay language.

Citizenship by registration (persons resident in States of Sabah and Sarawak on Malaysia Day)

16A. Subject to Article 18, any person of or over the age of eighteen years who is on Malaysia Day ordinarily resident in the State of Sabah or Sarawak is entitled, upon making application to the Federal Government before September 1971, to be registered as a citizen if he satisfies the Federal Government—

- (a) that he has resided before Malaysia Day in the territories comprised in those States and after Malaysia Day in the Federation for periods which amount in the aggregate to not less than seven years in the ten years immediately preceding the date of the application, and which include the twelve months immediately preceding that date;
- (b) that he intends to reside permanently in the Federation;
- (c) that he is of good character; and
- (d) except where the application is made before September 1965,

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Art. 15—(cont.)

Clauses (4) & (5)

The words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, section 19, in force from 27-08-1976.

Art. 15A

Added by Act 14/1962, section 4, in force from 01-10-1962.

Art. 16

1. Act 10/1960, paragraphs 2(*a*) and (*b*), in force from 01-12-1960, substituted the words “Federal Government” for the words “registration authority” and the words “the Federal Government” for the words “that authority”.

2. Act 25/1963, section 8, in force from 29-08-1963, deleted the words “except where the application is made within one year after Merdeka Day” which appeared at the commencement of paragraph (*d*).

3. Act 26/1963, subsection 29(1), in force from 16-09-1963—

- a. inserted the words “outside Singapore” after the word “Federation” in paragraph (*a*). These words were subsequently repealed by Act 59/1966, section 2, in force from 09-08-1965; and
- b. substituted the words “to do so permanently” for the words “to reside permanently therein” in paragraph (*b*).

Art. 16A

1. Added by Act 26/1963, section 26, in force from 16-09-1963.

2. Act 59/1966, section 2, in force from 09-08-1965, deleted the words “outside Singapore” which appeared in paragraphs (*a*) and (*b*) after the word “Federation”.

3. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, section 19, in force from 27-08-1976.

4. *See* Art. 25(1), (1A), (2) & 28A(4).

and the applicant has attained the age of forty-five years at the date of the application, that he has a sufficient knowledge of the Malay language or the English language or, in the case of an applicant ordinarily resident in Sarawak, the Malay language, the English language or any native language in current use in Sarawak.

17. (*Repealed*).

General provisions as to registration

18. (1) No person of or over the age of eighteen years shall be registered as a citizen under this Constitution until he has taken the oath set out in the First Schedule.

(2) Except with the approval of the Federal Government, no person who has renounced or has been deprived of citizenship under this Constitution or who has renounced or has been deprived of federal citizenship or citizenship of the Federation before Merdeka Day under the Federation of Malaya Agreement 1948 shall be registered as a citizen under this Constitution.

(3) A person registered as a citizen under this Constitution shall be a citizen by registration from the day on which he is so registered.

(4) (*Repealed*).

Citizenship by naturalization

19. (1) Subject to Clause (9), the Federal Government may, upon application made by any person of or over the age of twenty-one years who is not a citizen, grant a certificate of naturalization to that person if satisfied—

(a) that—

(i) he has resided in the Federation for the required periods and intends, if the certificate is granted, to do so permanently;

(ii) (*Repealed*);

(b) that he is of good character; and

(c) that he has an adequate knowledge of the Malay language.